
Sealed Accord

A New Infrastructure for Multi-Party Negotiation

An executive summary for practitioners of high-stakes negotiation · dijat.github.io/sealed-accord-demo

The permanent problem with honest positions

Every experienced negotiator has lived the same paradox. The party that reveals its true reservation first loses the leverage needed to protect it. This is not a failure of goodwill or skill. It is the rational response to an environment where disclosure is irreversible and information is power.

The tools the profession has developed over decades are all creative workarounds for one underlying constraint, however different they look on the surface. Facilitated dialogue, shuttle diplomacy, bracketed offers, structured deliberation, neutral evaluation: every one of them still requires some form of disclosure as the price of progress. The side that reveals to the mediator has already reduced its optionality. The side that withholds gains nothing from shared discovery. And the mediator, even the most gifted one, must navigate by inference, intuition, and accumulated professional judgment rather than fact.

In multi-party settings the problem compounds. Three or more principals with intersecting obligations, private coalitions, and information asymmetries running simultaneously in multiple directions: here the traditional tools often fail not because they are misapplied but because no amount of skill at the table can solve the disclosure problem. The zone of agreement can only be discovered by disclosing enough to find it, and disclosing enough to find it destroys the leverage needed to settle within it.

This is not a skill problem. It is an infrastructure problem. The room is built wrong.

The same structure appears wherever multi-party negotiation is consequential. In multilateral treaty negotiations, each delegation's true threshold rarely enters the room cleanly: the actual point below which domestic ratification fails, the conditions whose absence is genuinely unacceptable. What negotiators disclose instead are the positions each party calculates it can afford to reveal. Mediators become expert readers of back-channel rumor. Agreements are sometimes reached not because the zone of agreement was rigorously discovered, but because enough time passed, enough political capital was spent, and enough trust accumulated that the parties were finally willing to reveal enough to converge.

Camp David, Oslo, the Iran nuclear track: each found its own workaround. None solved the underlying problem. The consequence is systematic: matters take longer than necessary, more fail entirely, and the

agreements that emerge are sometimes unstable because they were built on disclosed positions rather than the underlying constraint surfaces that actually governed what each party could accept.

The instrument: sealed discovery under a human neutral

Sealed Accord is not software you install. It is a **procedure you adopt**. Practically, that means a structured instrument for multi-party negotiation in which the parties and their neutral agree, before anything is disclosed, on the complete shape of the proceeding.

Before the first number moves or the first position is advanced, every party and the neutral sign on to a single, frozen specification of the entire procedure. Phases, rules of disclosure, the vocabulary of terms that will govern non-numeric conditions, the method for computing outcomes, the scope of the neutral's authority: every one of these is fixed in advance, written down as one document everyone can check against rather than take on faith. What the parties sign is not a contract about outcomes. It is a **contract about the shape of the proceeding itself**. The procedure cannot quietly change mid-matter. If anyone tried, the deviation from what was agreed would become immediately and independently verifiable, without requiring anyone's word for it.

Within this framework, the mechanism introduces what might be called **sealed discovery**. Each party submits its true position: numeric reservation values, the conditions that are genuine deal-makers and walk-aways, preferences over non-numeric terms. None of it goes to a counterparty. None of it goes to the mediator. It goes only into a sealed space that computes but does not disclose, a space no person, including the mediator, can see into. Think of it as a vault with no windows in any direction.

Inside this vault, the feasibility tests run: does a zone of agreement exist across all parties simultaneously? Which accord packages satisfy everyone's hard constraints? What is the stable outcome, given the adoption rule the parties chose at the outset?

What exits the sealed space

Only **signals**. Not positions. Never positions.

The signal is simply this: *a zone of agreement is possible, or not yet*. When agreement is possible, the computation selects from among the stable outcomes, meaning packages that no coalition of parties would all simultaneously prefer to abandon, using a rule the parties chose before anyone submitted anything.

A skeptical reader will already have an objection forming. Doesn't reducing a negotiation to feasibility tests and yes-or-not-yet signals drain the room of the very things that make skilled mediation an art rather than an algorithm: the read of a delegation's true appetite, the instinct for when a pause serves better than a proposal, the sense of what a party needs in order to save face while still conceding?

Mapping the visible spectrum, learning exactly where violet ends and blue begins, does nothing to diminish anyone's ability to stand outside after a storm and feel the awe of an actual rainbow.

The honest answer is that the instrument does close to the opposite of what that objection fears. The measurement and the wonder simply operate at different registers; naming the frequencies does not compete with experiencing the color. If anything, it protects the experience from being crowded out by noise,

guesswork, and things that only resemble it.

Sealed Accord's sealed computation resolves exactly one narrow question, and resolves it with certainty: given what every party has privately committed to requiring or refusing, does a mutually survivable path exist, and if so, which one is stable? That is the spectrum being mapped, the coarse geometry of what is jointly possible. It has nothing to say, and is deliberately built to have nothing to say, about how a delegation should be approached, when silence matters more than a proposal, what tone repairs a relationship that a raw number would rupture, or how a mediator reads a room in the seconds before anyone speaks. Those judgments remain entirely the neutral's domain, exercised now on a canvas the instrument has cleared of one very specific kind of noise: parties calculating what they can safely reveal instead of saying what they actually need. The art of bringing people to agreement is not only preserved by this. It becomes more visible, because it is no longer competing for space with guesswork the instrument has already resolved.

The neutral's role is transformed, not diminished. The mediator or arbitrator presides throughout. They structure the dispute, designate the narrow questions that require judgment, commission fact-finding, and retain every act that cannot be automated: adoption of the case structure, release of phases, the decision on impasse if negotiation fails. What the neutral may see, and when, is itself built into the procedure they agreed to at the outset. The instrument serves the neutral. It does not replace them.

What changes is that the neutral no longer has to navigate the full information asymmetry alone. The sealed computation tells the neutral what the parties together can achieve, while telling no one, including the neutral, what any single party alone holds.

The mechanism also prices bluffing. A party that manufactures impasse, whether by inflating its walk-away conditions or by hardening its positions unreasonably, finds itself routed to final-offer arbitration, where the neutral selects one party's sealed last position in its entirety. Manufactured impasse becomes expensive. Honest convergence becomes the dominant posture, not as a matter of faith but as a structural incentive.

The deeper innovation: procedures as living intellectual property

Here is where the instrument points toward something larger than any single negotiation.

The procedure that governed a particular multi-party matter (its phases, its term vocabulary, its method for handling walk-away conditions, its impasse protocol, the scope it granted the neutral) is not buried in a filing cabinet when the matter closes. It survives as a signed, versioned record with its own history: who authored it, when, what it was adapted from, and what outcomes it has produced across every matter that used it.

This creates something that has never existed in negotiation practice before:

A compounding, private, longitudinal evidence base for procedural design itself.

Today, when a practitioner develops a new approach, perhaps a novel method for handling sequential disclosure in multi-party settings, an early-ruling protocol that surfaces structural blockers before calendar time is burned, or a term vocabulary that reduces impasse rates in a specific claim class, that technique

lives only in their memory and their case notes. It cannot be measured against alternatives. It cannot be safely shared without surrendering the competitive advantage that mastery provides. And it produces no outcome data beyond what the practitioner happens to remember or what clients report informally.

Under the Sealed Accord model, every time a procedure runs it emits process statistics: round counts, convergence rates, time to signal, outcome rates. Never party data: no positions, no reservation values, no identities, unless the parties themselves choose to disclose them. What gets measured is the **procedure's performance**, aggregated across every matter that used it.

Over time this creates the empirical substrate that negotiation practice has never had:

- Which procedural designs converge faster in multi-party settings with specific claim profiles?
- Which early-ruling protocols surface structural blockers most efficiently, and which merely add time?
- How does a procedure's performance shift across different jurisdictional contexts and neutral cultures?
- When a procedure is adapted for a different domain, does the adaptation improve on the original?

The cross-domain dimension. The same structural problem appears across domains that rarely talk to each other: multiple parties, private constraint surfaces, and joint feasibility discovery under information asymmetry. It shows up in inter-institutional disputes in commerce, in multilateral resource allocation under political constraint, in consortium wind-downs, regulatory remediation, and industry-fund allocations. The underlying shape of the problem is identical across all of them; what differs by domain is the vocabulary of terms, the legal boundaries on what can be asked for, and the range of outcomes considered typical.

A procedure developed in one context that performs exceptionally well, whether measured in convergence speed, in the stability of the resulting accord, or in how rarely parties reopen an outcome once reached, can be examined by a practitioner in a different domain, adapted with appropriate parameters, and studied comparatively. If the adaptation performs differently, that comparison is visible in its lineage. If it performs better, the improvement travels back toward the original through citation, not through merger. And if it quietly weakens the procedure, say by narrowing the neutral's scope or loosening the constraints that made it credible in the first place, that weakening shows up in the precise comparison between versions, not only in whoever happens to be telling the story.

The procedure is the unit of analysis

The adaptation is the experiment. The outcome record is the data.

This is, in effect, the beginning of a **scientific literature for negotiation procedure design**. It would be conducted entirely privately, across matters that participants would never discuss in any other context, producing evidence that no individual practitioner's case notes could ever generate on their own.

New types of negotiation become possible that were simply impractical before. Procedures can be designed specifically for multi-stakeholder settings where no single party holds enough information to even propose terms, so that discovering what is collectively achievable becomes the first act of cooperation rather than a precondition for it. Procedures can incorporate early rulings that surface fundamental

blockers before calendar time and political capital are spent chasing something that was never viable. And procedures can be tuned for different trust environments, different time constraints, different mixes of numeric and non-numeric terms, with the performance of each variation compared empirically across cases in which none of the underlying matter data is ever shared.

What this adds to the practitioner's toolkit

Sealed Accord creates a new kind of **commitment device**: one that makes honesty safe, makes procedural integrity something you can check rather than take on trust, keeps the neutral's authority visible and protected by the procedure's own structure, and turns the knowledge embedded in effective procedures into a form of intellectual property that is publicly attributed, privately studied, and economically rewarded.

The **neutral** who has spent a career developing judgment about which procedural approaches work in which contexts can now put that judgment into a durable, attributed form, and earn from it in proportion to the value it generates, without ever disclosing the underlying matter data that a conventional case study or article would require.

The **forum** that has accumulated process knowledge across hundreds of matters can build that knowledge into a procedure template, put it through genuine empirical comparison, and refine it as evidence accumulates, all without ever publishing what any party disclosed or what any neutral decided.

The **parties** who negotiate under the instrument can do so knowing several things at once: that their true positions will never be seen by anyone, that the procedure cannot be quietly modified to favour a counterparty's interests, that the neutral's authority is preserved by the procedure's own structure and not by professional norms alone, and that whatever agreement they do reach is stable in the precise sense that no subset of them would all prefer to deviate from it.

The instrument does not replace judgment. It creates the conditions under which judgment finally has something honest to work with.

Reference application: dijat.github.io/sealed-accord-demo · **Detailed specification:** [demo/SEALED_ACCORD_DEMO.md](#)
· **Channel:** [dijat-lit-20260704](#)